

**BEFORE THE
FEDERAL MARITIME COMMISSION**

DOCKET NO. 15-11

IGOR OVCHINNIKOV, IRINA RZAEVA, and DENIS NEKIPELOV,

— vs. —

**MICHAEL HITRINOV a/k/a
MICHAEL KHITRINOV,
EMPIRE UNITED LINES CO., INC., and CARCONT, LTD.**

INFORMAL DOCKET NO.: 1953(I)

KAIRAT NURGAZINOV,

— vs. —

**MICHAEL HITRINOV a/k/a
MICHAEL KHITRINOV,
EMPIRE UNITED LINES CO., INC., and CARCONT, LTD.**

**COMPLAINANTS' MOTION FOR AN INCREASE OF UP TO EIGHTEEN PAGES
FOR THEIR EXCEPTIONS**

Pursuant to Rules 69 and 71, Complainants, through their Counsel, Marcus A. Nussbaum, Esq. respectfully submit this motion to the Commission for an increase of up to eighteen (18) pages of the page limit applicable to their Exceptions to the Presiding Officer's Initial Decision.

Under FMC Rule 227(e), all briefs and replies filed pursuant to this section shall ordinarily be limited to fifty (50) pages in length, exclusive of pages containing the table of contents, table of authorities, and certificate of service, unless the Commission allows the parties to exceed this limit for good cause shown and upon application filed not later than seven (7) days before the time fixed for filing of such a brief or reply. Complainants request leave for up to eighteen (18)

additional pages (a total of up to 68 pages) because they believe it necessary to a full and fair exposition of their argument. In particular, we note that the ID itself is seventy three (73) pages and covers numerous issues (134 findings of fact) and vast amounts of documentary evidence. We additionally note that the ID is issued as to two separate proceedings which were consolidated as captioned above.

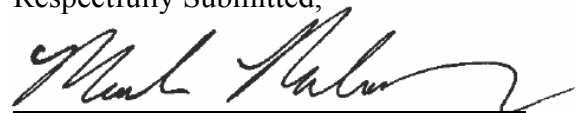
The undersigned conferred with counsel for respondents who has not consented to this application, however, in light of recent circumstances, to wit: that respondents' counsel avers to no longer having any duty to his client, it is unclear as to who is objecting to complainants' application. When pressed for clarification on this issue, Mr. Jeffrey declined to clarify if the objection is coming from him or his clients. A copy of the email correspondence is attached.

For the foregoing reasons, Complainants respectfully request that their motion for a page increase of up to eighteen additional pages be granted.

WHEREFORE, it is respectfully requested that Complainants' motion be granted in its entirety.

Dated: April 25, 2017
Brooklyn, NY

Respectfully Submitted,

A handwritten signature in black ink, appearing to read 'Marcus A. Nussbaum', written over a horizontal line.

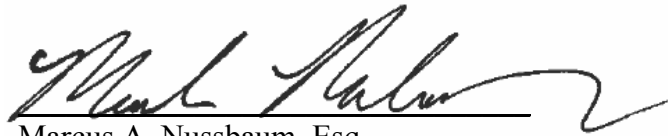
Marcus A. Nussbaum, Esq.
P.O. Box 245599
Brooklyn, NY 11224
Tel: 888-426-4370
Fax: 347-572-0439
Attorney for Complainants
marcus.nussbaum@gmail.com

CERTIFICATE OF SERVICE

I hereby certify that I have this day served the **COMPLAINANTS' MOTION FOR AN INCREASE OF UP TO EIGHTEEN PAGES FOR THEIR EXCEPTIONS** upon Respondents' Counsel at the following address:

Nixon Peabody LLP
Attn: Eric C. Jeffrey, Esq.
799 9th Street NW, Suite 500
Washington, DC 20001-4501

by first class mail, postage prepaid, and via email (ejeffrey@nixonpeabody.com).

A handwritten signature in black ink, appearing to read 'Marcus A. Nussbaum', with a long horizontal flourish extending to the right.

Marcus A. Nussbaum, Esq.
P.O. Box 245599
Brooklyn, NY 11224
Tel: 888-426-4370
Fax: 347-572-0439
Attorney for Complainants
marcus.nussbaum@gmail.com

Dated: Brooklyn, New York
April 25, 2017



Marcus Nussbaum <marcus.nussbaum@gmail.com>

Docket Nos. 15-11 & 1953(I)

Jeffrey, Eric <ejeffrey@nixonpeabody.com>
To: Marcus Nussbaum <marcus.nussbaum@gmail.com>

Wed, Apr 19, 2017 at 11:57 AM

Please simply respond as I requested.

**Eric C Jeffrey**

Counsel

ejeffrey@nixonpeabody.com

T 202-585-8215 | C 703-919-3374 | F 855-782-6662

Nixon Peabody LLP | 799 9th Street NW | Suite 500 | Washington, DC 20001-4501

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From: Marcus Nussbaum [mailto:marcus.nussbaum@gmail.com]
Sent: Wednesday, April 19, 2017 11:55 AM
To: Jeffrey, Eric
Subject: Re: Docket Nos. 15-11 & 1953(I)

Mr. Jeffrey,

It matters because you have already informed the Commission that your obligations to your clients have come to an end. Therefore, clarification is needed as to who is objecting to complainants' forthcoming application and whether or not complainants' request for the enlargement of the page limit has been communicated to your clients.

Please advise.

Regards,

Marcus A. Nussbaum, Esq.
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Fax: 347-572-0439

<http://www.nussbaumlawfirm.com/>

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On Wed, Apr 19, 2017 at 11:41 AM, Jeffrey, Eric <ejeffrey@nixonpeabody.com> wrote:

Dear Mr. Nussbaum

1. I am not sure why that matters, and seems to me a matter of attorney-client privilege. I ask that you say Respondents declined to consent.

2. Unknown as yet.

Best regards,

Eric



Eric C Jeffrey

Counsel

ejeffrey@nixonpeabody.com

T 202-585-8215 | C 703-919-3374 | F 855-782-6662

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From: Marcus Nussbaum [mailto:marcus.nussbaum@gmail.com]

Sent: Wednesday, April 19, 2017 11:39 AM

To: Jeffrey, Eric

Subject: Re: Docket Nos. 15-11 & 1953(I)

Mr. Jeffrey,

For purposes of clarification with respect to your email below, can you please state whether it is you who does not consent to the enlargement of the page limit, or is it your clients who do not consent?

Additionally, will you be filing the Reply, or will it be filed by your clients?

Regards,

Marcus A. Nussbaum, Esq.
P.O. Box 245599
Brooklyn, NY 11224

Tel: 888-426-4370
Fax: 347-572-0439

<http://www.nussbaumlawfirm.com/>

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On Wed, Apr 19, 2017 at 11:22 AM, Jeffrey, Eric <ejeffrey@nixonpeabody.com> wrote:

Dear Mr. Nussbaum

Could you please note in your motion that Respondents do not consent to such a significant enlargement of the page limit and expect to file a reply.

Best regards,

Eric



Eric C Jeffrey

Counsel

ejeffrey@nixonpeabody.com

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From: Marcus Nussbaum [mailto:marcus.nussbaum@gmail.com]
Sent: Wednesday, April 19, 2017 11:12 AM
To: Jeffrey, Eric
Subject: Re: Docket Nos. 15-11 & 1953(I)

Mr. Jeffrey,

As you are aware, the ID is seventy three pages long and covers a large amount of material and documents.

Consequently, the additional pages are needed in order to properly address the Exceptions arising out of that large record and voluminous decision by the Presiding Officer.

Regards,

Marcus A. Nussbaum, Esq.
P.O. Box 245599
Brooklyn, NY 11224

Tel: 888-426-4370
Fax: 347-572-0439

<http://www.nussbaumlawfirm.com/>

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On Tue, Apr 18, 2017 at 10:01 PM, Jeffrey, Eric <ejeffrey@nixonpeabody.com> wrote:

May I ask why you need so many pages?

Sent from my iPhone

On Apr 18, 2017, at 9:47 PM, Marcus Nussbaum <marcus.nussbaum@gmail.com> wrote:

Mr. Jeffrey,

Complainants plan to file a motion for a 20-page increase in the page limit for the Exceptions to the ID.

Please let me know by 5:00 p.m. tomorrow if you consent to the above.

Regards,

Marcus A. Nussbaum, Esq.
P.O. Box 245599
Brooklyn, NY 11224

Tel: 888-426-4370

Fax: 347-572-0439

<http://www.nussbaumlawfirm.com/>

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